

Fugitive Economic Offenders (Issuance of Provisional Attachment Order) Rules, 2018

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Fugitive Economic Offenders (Issuance of Provisional Attachment Order) Rules, 2018

Rule FUGITIVE-ECONOMIC-OFFENDERS-ISSUANCE-OF-PROVISIONAL-ATTACHMENT-ORDER-RULES-2018 of 2018

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Fugitive Economic Offenders (Issuance of Provisional Attachment Order) Rules, 2018

Published vide Notification No. G.S.R. 395(E), dated 24.4.2018

G.S.R. 395(E). - In exercise of the powers conferred by clause (h) of sub-section (2) of section 23 of the Fugitive Economic Offenders Ordinance, 2018 (1 of 2018), the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Fugitive Economic Offenders (Issuance of Provisional Attachment Order) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"authorised Officer" means an officer not below the rank of Deputy Director authorised by the Director for the purposes of these rules;

(b)

"Ordinance" means the Fugitive Economic Offenders Ordinance, 2018 (1 of 2018);

(c)

"provisional attachment order" means an order in writing under sub-section (2) of section 5 of the Ordinance.

(2)

All other words and expressions used and not defined in these rules, but defined in the Ordinance, shall have the meanings respectively assigned to them in the Ordinance.

3.

Manner of issuance of provisional attachment order.

(1)

Where the Director or any authorised officer has reason to believe on the basis of information in his possession that the property is proceeds of crime, or is a property owned by an individual who is a fugitive economic offender and which is being or is likely to be dealt with in a manner which may result in the property being unavailable for confiscation under sub-section (2) of section 5, the Director or authorised officer, as the case may be, shall make a provisional attachment order.

(2)

The authorised officer shall endorse a copy of the provisional attachment order to the fugitive economic offender and persons who may have an interest in any of the properties listed in the order including the persons in possession of the properties and the Special Court.

(3)

The service of provisional attachment order shall be done in the following manner: -

(a)

by delivering or tendering the provisional attachment order to the owner or person; or

(b)

if it cannot be delivered to such owner or person, by delivering it to the person duly authorised by such owner or person; or

(c)

if the owner or person is absent from his residence at the time when service of the provisional attachment order is being effected on him, and there is no likelihood of his being found at the residence within a reasonable time and has not duly authorised any person to accept the service on his behalf, service may be made on any adult member in the family of such owner or person who is residing with him; or

(d)

if the service cannot be effected as provided in clauses (a) to (c), the serving officer shall affix one of the duplicate of the provisional attachment order at some conspicuous part of the premises in which the person or owner resides or is known to have last resided or carried on business or personally works or has worked for gain and that the written report thereof shall be witnessed by two persons.

(4)

If the provisional attachment order cannot be served under sub-rule (3), then by publishing it in a leading newspaper (both in vernacular and in English) having wide circulation in the area or jurisdiction in which the person resides or is known to have last resided or carried on business or personally works or last worked for gain.

(5)

Notwithstanding anything contained in this rule, the provisional attachment order may be sent to the owner or person

simultaneously by speed post with proof of delivery at the address of his place of residence or his last known place of residence or the place where he carried on, or last carried on, business or personally works or last worked for gain.

4.
Service of provisional attachment order on corporate bodies, societies and trusts etc.

(1)

(a)

The provisional attachment order on corporate bodies, societies and trust etc. shall be effected by serving it on the secretary, local manager or the principal officer of the corporate bodies, societies and trust etc., or by letter sent by speed post addressed to the chief officer of such bodies in India, in which case the service shall be deemed to have been effected;

(b)

If the service cannot be effected as provided in clause (a), the serving officer shall affix one of the duplicate of the provisional attachment order at some conspicuous part of the premises in which the office of the corporate body, society and trust etc. carries on business or have last carried on business.

(2)

If the provisional attachment order cannot be served under sub-rule (1), then by publishing it in a leading newspaper (both in vernacular and in English) having wide circulation in the area or jurisdiction where the corporate body, society and trust etc. carries on business or have last carried on business.

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